



File No.: EXP202317785

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 20, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202208513, followed against INVERTIA TENERIFE 2019, S.L. (hereinafter, the defendant). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER INVERTIA TENERIFE 2019, S.L., with NIF B76813419, to proceed, in accordance with Article 58.2.d) of the GDPR, within one month from the notification of the resolution of this sanctioning procedure, to adopt all measures that are indispensable to ensure that it informs the data subjects from whom personal data is collected, in the terms provided in Article 13 of the GDPR, at the time of collection.”

SECOND: The notification of the resolution of the sanctioning procedure, in which the defendant was granted a period of one month to adopt the ordered measures, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, not being collected by the responsible party within the availability period, as stated in the acknowledgment of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on May 5, 2023.

Although the notification was validly carried out by electronic means, for informational purposes, a copy of the resolution was sent through electronic means which was also not collected by the responsible party within the availability period, as stated in the acknowledgment of receipt in the file, understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on September 11, 2023.

THIRD: After the indicated period elapsed without any written communication regarding the measures implemented by the defendant being received by this Agency, it was necessary to require them again to provide evidence within ten working days that they had adopted the appropriate measures, in accordance with what was agreed in the aforementioned Resolution.

This requirement was returned to sender as unknown by Correos on August 9, 2023, according to the acknowledgment of receipt in the file, despite having been sent to the tax address provided by the State Agency for Tax Administration.

On November 8, 2023, with an outgoing registration date and registration number REGAGE23s00075657711, as a supplement to the previous notification, a new communication of the compliance requirement of the aforementioned Resolution was sent to the defendant at the tax address by ordinary postal mail, to be deposited in their mailbox.

FOURTH: The defendant has not sent any response to this Agency that certifies compliance with the imposed measures.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be filed due to the expiration of the established deadlines for it. Likewise, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have knowledge that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SIXTH: According to the report obtained from the AXESOR tool, the entity INVERTIA TENERIFE 2019, S.L. is a company established in 2019 for which no financial information is available.

SEVENTH: On January 8, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the defendant for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The agreement to initiate the present sanctioning procedure was notified, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State

Gazette dated January 22, 2024, after the attempt to notify by postal mail at the defendant's tax address was unsuccessful, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party by electronic means through the single enabled electronic address.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement - establishes that if no allegations are made within the established period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, taking into account that the defendant has not...

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allegations were made regarding the initiation agreement of the file, and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in the present case.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance indicated in the first, second, and third recitals were notified in accordance with the provisions of the LPACAP. Said resolution became final and enforceable due to the expiration of the deadlines established for the filing of the appeals indicated therein.

SECOND: The respondent has not submitted any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated January 22, 2024, after the attempt at postal notification at the respondent's tax address proved unsuccessful.

FOURTH: The respondent has not presented any allegations regarding the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

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In light of the facts presented, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the respondent for violating Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

V

Adoption of measures

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This Agency agrees to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data

Protection RESOLVES:

FIRST: TO IMPOSE on INVERTIA TENERIFE 2019, S.L., with NIF B76813419, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO ORDER INVERTIA TENERIFE 2019, S.L., with NIF B76813419, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove compliance with the measures imposed in the sanctioning resolution of file number EXP202208513.

THIRD: TO NOTIFY this resolution to INVERTIA TENERIFE 2019, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered concluded.

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